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CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO FORM INTERROGATORIES
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO PRODUCTION OF DOCUMENTS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL FURTHER ANSWERES/RESPONSES TO REQUEST FOR ADMISSIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR ADMISSIONS, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: Plaintiff's Motions to Compel Responses to Form Interrogatories, Production of documents, and Special Interrogatories (Set One) are granted.

As to Plaintiff's Motion to Compel Requests for Admissions, it is denied.

As to Sanctions, it is denied.

CCP §2030.290(b) provides that if a party fails to respond to an interrogatory request “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (CCP §2030.290.)

The declaration of City’s counsel reflects that responses to the discovery were not served. Further, the meet and confer letter attached to the declaration reflects that after the alleged responses were mailed, City was inquiring when responses would be provided, which validates the City’s position that responses were never received. The opposition to the motion fails to provide any evidence to the contrary. Accordingly, the court grants the motion to compel responses to Special Interrogatories (Set One) numbers 1 – 35.

There is no provision in the discovery code for compelling a party to respond to RFAs, rather, the code provides that if the party to whom the requests are directed fails to timely respond, the “requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction....” (CCP §2033.280(b).) Nor does Defendant cite any specific provision that gives this court authority to compel response to RFAs. Rather, Plaintiff’s only recourse was a motion to deem admissions admitted, pursuant to CCP §2033.280, which is cited by Plaintiff in its motion.

SANCTIONS

CCP §2030.290(c), provides in pertinent part that “[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2030.290(c).) Here, City failed to file a reply (although there is no Proof of Service indicating the opposition was served on City) addressing Defendant’s allegations that responses were served. Therefore, the court concludes that other circumstances make the imposition of a sanction unjust.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504921	CORONA NORCO UNIFIED SCHOOL DISTRICT vs SCHINDLER ELEVATOR CORPORATION	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenors Michele Adkins and Donna Penaranda’s Motion for Leave to Intervene is granted; Intervenors must file their Complaint in intervention within 20 days of this ruling.